

# CHAPTER 284

## FELLING OF TREES (CONTROL)

Acts Nos. 9 of 1951, 30 of 1953.

AN ACT TO PROVIDE FOR THE PROHIBITION, REGULATION OR CONTROL OF THE FELLING OF TREES.

[15th March, 1951.]

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### Short title.

1. This Act may be cited as the Felling of Trees (Control) Act.

### Orders prohibiting or regulating the felling of trees.

2. (1) The Minister may by Order provide for the prohibition, regulation or control of the felling of trees of such description as may be specified in the Order.

(2) An Order under this section may be made so as to have effect either throughout Sri Lanka or in any particular area in Sri Lanka, and may prohibit the doing of anything regulated by the Order except under the authority of a licence granted by such officer as may be specified in the Order.

(3) Every Order made by the Minister under this section shall be published in the Gazette and shall come into operation upon the date of such publication or upon such later date as may be specified therein.

(4) Every Order made by the Minister under this section shall, as soon as practicable after it comes into operation as hereinbefore provided, be laid before Parliament; and if a resolution is passed by Parliament, within forty days after the Order is so laid, that the Order shall be annulled, the Order shall with effect from the date of the resolution be void, but without prejudice to anything previously done thereunder.

Every Order which is not so annulled shall be as valid and effectual as though it were herein enacted.

### Steps for identification of trees.

3. Any person authorized by the Commissioner of Agrarian Services may take such steps whether by marking or otherwise as may be necessary for the purpose of the identification of trees to which an Order under section 2 or any licence thereunder relates.

### Penalty for contravention of Order.

4. Any person who acts in contravention of any Order made under this Act or of any condition inserted in any licence granted under any such Order shall be guilty of an offence and shall, on conviction after summary trial before a Magistrate, be liable to a fine not exceeding five hundred rupees or to imprisonment of either description for a term not exceeding six months or to both such fine and imprisonment.

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*Primary Court has exclusive jurisdiction—See section 33 of the Judicature Act read with Gazette Extraordinary No. 43/4 of 1979.07.02.*

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